

[REDACTED]

**UNITED STATES INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.**

**Before the Honorable Doris Johnson Hines
Administrative Law Judge**

In the Matter of:

CERTAIN WEARABLE DEVICES

Investigation No. 337-TA-1478

**COMPLAINANTS' OPPOSITION TO RESPONDENTS'
MOTION FOR SUMMARY DETERMINATION OF
NONINFRINGEMENT BY OURA'S ALTERNATIVE PRODUCTS**

(Motion Docket No. 1478-007)

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Exhibits 59–99 are being filed concurrently with this opposition, numbered continuously from Oura’s Motion for Summary Determination exhibits.

[illegible]

[REDACTED]

I. INTRODUCTION

Oura's Motion for Summary Determination of noninfringement of the '789 Patent for its new and alleged alternative products, Ring 5 and [REDACTED] should be denied for three reasons.

First, the noninfringement theories specific to Ring 5 and [REDACTED] that Oura now advances in its Motion were never disclosed during fact discovery. Oura raised these theories specific to Ring 5 and [REDACTED] for the first time in the rebuttal expert report of its technical expert. During fact discovery, however, Oura told a different story: its noninfringement contentions asserted that the Ring 5 and [REDACTED] would be materially the same as Ring 4 and not infringe for the *same* reasons.

Second, and more generally, Oura's discovery responses and contentions also never disclosed or presented Ring 5 and [REDACTED] as alleged redesigns or non-infringing alternatives; nor did Oura's discovery responses and contention ever assert that they should be adjudicated as such under the four-factor *Oligosaccharides* test. Oura's discovery responses never identified any redesigns or alternatives that could be within the scope of this investigation. To the contrary, Oura's corporate witnesses disclaimed any attempts at redesigns in response to this case; [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] It was only after Samsung served final infringement contentions—and just one day before the close of fact discovery—that Oura announced the release of Ring 5, after Samsung no longer had any opportunity to include it within the accused products or seek discovery on it. As such, there is no basis for Oura to introduce any evidence regarding the allegedly different structure of its two new or future products or to seek adjudication for those products.

Third, Ring 5 and [REDACTED] should not be adjudicated because Oura fails to satisfy the *Oligosaccharides* factors. As to discovery, not only did Oura fail to notify Samsung of the alleged

[REDACTED]

redesign or alternative product, Oura also failed to timely produce discovery needed to evaluate it. While Oura insists that it produced technical documents regarding Ring 5 and [REDACTED] such documents—produced in Investigation No. 337-TA-1468 (“1468 Investigation”)—were directed to entirely different features relevant to unrelated patents asserted by Oura and were wholly inadequate to evaluating infringement of the ’789 Patent. Critically, Samsung could not obtain a copy of Ring 5 or [REDACTED] on its own for teardown during fact discovery—the Ring 5 was not accessible to the public until June 4, 2026, after fact discovery closed, while [REDACTED]

[REDACTED].

For all of these reasons, Oura’s untimely noninfringement theories for the Ring 5 and [REDACTED] products with respect to the ’789 Patent should be excluded, and neither product should be adjudicated. To the extent, however, the ALJ is inclined to adjudicate these products, fairness requires that Samsung be allowed to respond. Late-produced evidence from Oura and testimony from Oura’s own expert cast grave doubt on the reliability of Oura’s noninfringement theories. Thus, if Oura’s theories are not precluded outright, Samsung requests leave to seek the additional necessary discovery and supplement its infringement contentions and expert report to address those products and Oura’s continued infringement.

II. FACTUAL BACKGROUND

Despite Oura’s assertion that it [REDACTED]

[REDACTED] Oura MSD Br. at 6, Oura never identified or suggested those future products are alternatives or redesigns. Instead, Oura’s responses stated the very opposite: that [REDACTED] (i.e., Ring 5) and [REDACTED] would be materially the same as the Ring 4.

[REDACTED]

On January 20, 2026, Samsung served its Interrogatory No. 7 (“Rog 7”), which requests
Oura’s non-infringement contentions. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Oura suggests that it produced Ring 5 and [REDACTED] technical documents, including
teardown images, as early as January 26, 2026 in the 1468 Investigation, and continuing through
March 2026. MSD at 3-5. However, none of those materials show the internal structure of the
PCB—the structure relevant to the ’789 Patent. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

ER

[illegible]

Oura did not otherwise disclose or suggest that Ring 5, [REDACTED] or any other product would

[REDACTED]

III. OURA SHOULD BE PRECLUDED FROM ADVANCING ITS NEW THEORIES NOT DISCLOSED DURING FACT DISCOVERY

While Oura goes on at length about the discovery it claims to have produced, it never set forth the noninfringement theories that are now the subject of its motion. The noninfringement arguments for its Ring 5 and [REDACTED] were advanced for the first time in its rebuttal noninfringement expert report, and its *Oligosaccharides*-based arguments were not advanced until the MSD itself.¹

A very similar issue arose in the parallel Inv. No. 337-TA-1468 between the parties. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

A. Legal Background

While experts may reasonably elaborate on a party's contentions, a party may not wait until expert reports to provide for the first time the bases for its theories. *Certain Blow-Molded Bag-In-Container Devices, Associated Components, & End Prods. Containing or Using Same*, Inv. No.

¹ See *infra* Section IV.B for analysis of *Oligosaccharides* factors.

[REDACTED]

337-TA-1115, Order No. 20, 2019 WL 967848, at *1 (Jan. 29, 2019). Indeed, “[c]ontentions raised for the first time in an expert report are routinely stricken unless good cause exists based on information thereafter acquired.” *See, e.g., Certain Compact Wallets & Components Thereof*, Inv. No. 337-TA-1355, Order No. 20, 2023 WL 8119143, at *2 (Sept. 15, 2023); *Certain Wiper Blades*, Inv. No. 337-TA-816, Order No. 76, 2013 WL 4782290, at *5-6 (Aug. 15, 2013) (striking portions of expert report pertaining to references not disclosed in invalidity contentions).

Moreover, “a party cannot rely on contentions [] that have not been timely disclosed during discovery.” *See, e.g., Certain Audio Processing Hardware, Software, & Prods. Containing the Same*, Inv. No. 337-TA-1026, Order No. 58, 2017 WL 4216995, at *3-4 (Aug. 15, 2017) (striking portions of prehearing brief that advanced contentions not timely disclosed during fact discovery); *Certain Foodservice Equip. & Components Thereof*, Inv. No. 337-TA-1166, Order No. 47, 2020 WL 3819498, at *3 (June 4, 2020) (quoting same). Nor can a party obtain summary judgment on a contention it did not raise during discovery. *See, e.g., Fujitsu Ltd. v. Tellabs, Inc.*, 898 F. Supp. 2d 1047, 1051 (N.D. Ill. Sept. 26, 2012) (“[T]o the extent the defendants’ argument on summary judgment exceeds the scope of its contentions, the court agrees with the plaintiff that the defendants are procedurally barred from advancing a new theory at this stage of the litigation.”).

“[P]arties who disclose their contentions late in an investigation, with the aim of disadvantaging their opponent, take a significant risk of having those contentions stricken.” *Certain Elec. Candle Prods. & Components Thereof*, Inv. No. 337-TA-1195, Order No. 21, 2020 WL 5798131, at *2 (Sept. 2, 2020).

[REDACTED]

**B. Oura’s New ’789 Patent Noninfringement Theories For The Ring 5 And
[REDACTED] Are Not In Oura’s Contentions**

The first time Oura disclosed unique noninfringement arguments for the Ring 5 or the [REDACTED] with respect to the ’789 Patent (including those addressed in this MSD) was in its rebuttal expert report. For this reason alone, Oura’s MSD should be denied.²

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. To the extent it believed there were any meaningful differences between these “new” products and the earlier generations, Oura certainly did not set them forth in that supplemental contention, or any other contention.

Nor did Oura identify the Ring 5 or [REDACTED] as “redesigns” or “alternative products.” Oura relied on the exact same noninfringement theories as the Ring 4. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]?

² Samsung intends to file a motion to preclude any noninfringement arguments not properly disclosed in contentions, including those that are the subject of Oura’s MSD, at the timing outlined in the Procedural Schedule in this investigation.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] This testimony was consistent with prior testimony from the 1468 Investigation, [REDACTED]

[REDACTED]

[REDACTED] Given Oura's reliance on the exact same noninfringement theories for Ring 4, Ring 5, and [REDACTED]

[REDACTED]

[REDACTED] Samsung had every reason to believe that the Ring 5 and [REDACTED] were not redesigned or different from the earlier Ring 4 generation in any manner relevant to the asserted patents, including the '789 Patent.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Not until June 26—nearly a month after the close of fact discovery—did Oura, for the first time, advance entirely new noninfringement theories specific to the Ring 5 and [REDACTED] in the

[REDACTED]

Rebuttal Expert Report of Dr. Mortazavi. *See* Ex. 26 (B. Mortazavi Rebuttal Expert Report) ¶¶ 652-80. Oura did not disclose these theories in Oura’s interrogatory responses, noninfringement contentions, or any other discovery. If Oura’s expert believed he had sufficient information to assert Ring 5 does not infringe the ’789 Patent as his rebuttal expert report purports to do, and all of that information was produced during fact discovery, then Oura itself had sufficient information to do so in its rebuttal noninfringement contentions during fact discovery. It did not do so. This warrants denying Oura’s MSD.

C. Oura’s New Argument That The Ring 5 And [REDACTED] Are Redesigns Or “Alternative Products” That Should Be Adjudicated Is Not In Oura’s Contentions

During fact discovery, Oura also failed to disclose that the Ring 5 and [REDACTED] are redesigns or “alternative products” that should be adjudicated. The word “redesign” or “alternative product” appears nowhere in the 349 pages of Oura’s supplemental interrogatory response setting forth its non-burden contentions. *See* Ex. 64 (Oura’s Sixth Supplemental Response to Complainants’ First Set of Interrogatories (May 27, 2026)). Nor is there any mention of the *Oligosaccharides* factors, let alone any analysis of them in connection with the Ring 5 or [REDACTED] [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] Oura was

completely silent about any other reason why the Ring 5 and [REDACTED] do not infringe.

[REDACTED]

In short, Oura's contentions are completely devoid of any suggestion that the Ring 5 and [REDACTED] were "redesigns" or "alternative products," let alone any analysis of the *Oligosaccharides* factors. It was not until the meet and confer on this MSD, the day it was filed, that Samsung became aware of Oura's "alternative product" theory. This provides an independent basis to deny Oura's MSD.

D. Oura's Undisclosed Ring 5 And [REDACTED] Redesigns Must Be Precluded

Given Oura's failure to disclose its noninfringement theories in its contentions and failure to disclose that the Ring 5 and [REDACTED] are redesigns that should be separately adjudicated, the noninfringement arguments presented by Oura through the rebuttal expert report of Dr. Mortazavi must be excluded. "Contentions raised for the first time in an expert report are routinely stricken unless good cause exists based on information thereafter acquired." *See, e.g., Certain Compact Wallets*, 2023 WL 8119143, at *2; *Certain Wiper Blades*, 2013 WL 4782290, at *5-6 (striking portions of expert report pertaining to references not disclosed in invalidity contentions).

IV. EVEN IF OURA'S CONTENTIONS ARE DEEMED SUFFICIENT, OURA'S MSD SHOULD BE DENIED

A. Legal Standard

"Summary determination under Commission Rule 210.18, like summary judgment under Federal Rule of Civil Procedure 56, may be granted only where the evidence shows 'there is no genuine issue as to any material fact and that the moving party is entitled to summary determination as a matter of law.'" *Certain Wireless Commc'n Devices & Components Thereof*, Inv. No. 337-TA-1429, Order No. 32, at 1 (Aug. 26, 2025) (EDIS Doc. ID 861296) (quoting 19 C.F.R. § 210.18(b)). "The movant bears the initial burden of establishing that there is no genuine issue of material fact and that it is entitled to judgment as a matter of law." *Id.* (citing *Celotex Corp. v. Catrett*, 477 U.S. 317, 323 (1986)). In evaluating a motion for summary determination, "evidence

[REDACTED]

is to be viewed in a light most favorable to the non-movant, and all reasonable inferences must be drawn in favor of the non-movant.” *Certain Processed Slabs & Methods for Making Same*, Inv. No. 337-TA-1482, Order No. 16, at 3 (Apr. 29, 2026) (EDIS Doc. ID 881522) (quoting *Certain Computing Devices Utilizing Indexed Search Sys. & Components Thereof*, Inv. No. 337-TA-1389, Comm’n Op. at 10-11 (Nov. 6, 2024) (EDIS Doc. ID 836574)).

B. Oura Does Not Satisfy The *Oligosaccharides* Factors

Even if Oura had properly identified the Ring 5 and [REDACTED] as redesigns or alternative products for purposes of noninfringement, and even if Oura had properly provided its noninfringement theories in its contentions, Oura’s motion would still fail. A respondent seeking adjudication of a redesigned or alternative product bears the burden of showing that the following four factors are satisfied: “(1) whether the product is within the scope of the investigation; (2) whether it has been imported; (3) whether it is sufficiently fixed in design; and (4) whether it has been sufficiently disclosed by respondent during discovery.” *Certain Human Milk Oligosaccharides & Methods of Producing the Same* (“*Oligosaccharides*”), Inv. No. 337-TA-1120, Comm’n Op., 2020 WL 3073788, at *11 (June 8, 2020). Here, Oura does not satisfy the last three of four *Oligosaccharides* factors,³ where failure on any one would be grounds to deny Oura’s motion.

1. Importation

While today it is clear that Oura has imported at least the Ring 5 into the United States, that was not always the case—including the critical weeks before May 13, 2026, when Samsung’s Final Infringement Contentions were due. [REDACTED]

³ Samsung does not dispute the first factor, “whether the product is within the scope of the investigation.”

[REDACTED]

[REDACTED]

Although Oura relies on its production of samples for inspection as evidence of importation (Mot. at 13), it remains unclear if those samples were in fact imported, and Oura certainly did not state as much. To the contrary, in response to Samsung’s interrogatory on the issue, Oura asserted that the Ring 5 [REDACTED]

[REDACTED]

Oura’s reliance on the parties’ import stipulation is misplaced as it fails to timely correct Oura’s misleading discovery responses. That stipulation was filed on June 1, 2026, after the close of fact discovery. Ex. 68 (June 1, 2026 Joint Stipulation Regarding Importation and Inventory).

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

2. Sufficiently Fixed

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] Furthermore, public articles reported that the next generation “Ring 5” would not be available until 2027. Ex. 70 (<https://www.tomsguide.com/wellness/smart-rings/oura-ring-5-leaked-this-could-be-the-new-design>) (“Oura looks set to protect that status with the release of its next-generation ring, although it’s unlikely we’ll see it until 2027.”); Ex. 71 (<https://www.techtimes.com/articles/315379/20260324/oura-ring-5-leak-reveals-new-design-colors-health-tracking-upgrades-ahead-2027-launch.htm>) (“The Ring 5 has reportedly surfaced in early leaks, offering wearable tech enthusiasts a first look ahead of its expected late-2027 release.”); Ex. 72 (<https://www.techadvisor.com/article/3097123/oura-ring-5-release-date-design-leaked.html>) (“The follow-up to the Oura Ring 4 [] is on the way, but there’s a bit of a wait, as it’s set to arrive sometime in ‘late 2027’, ahead of the holiday season, which makes this leak quite the advanced glimpse.”).

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] See *Certain Portable Battery Jump Starters & Components Thereof (II)*, Inv. No. 337-TA-1359, Comm’n Op., 2024 WL 4145130, at *26 (July 5, 2024) (EDIS Doc. ID 826438) (declining to adjudicate certain redesign products not disclosed in its interrogatory responses because the respondent failed to provide “fair notice that these products were at issue, or show that these products were sufficiently fixed during fact discovery”).

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

3. **Oura Did Not Produce Discovery Timely Or Sufficiently**

The last *Oligosaccharides* factor, “whether [the alternative product] has been sufficiently disclosed by respondent during discovery,” weighs decisively against adjudication because Oura failed to timely produce discovery sufficient to permit Samsung to analyze infringement before its final infringement contentions were due on May 13, 2026, during fact discovery whatsoever, and even to the present day.⁶

In adjudicating this factor, the crucial question is whether “the timing of the production deprived [complainant] of the opportunity to develop infringement contentions, to obtain expert opinions, and to prepare for trial on that product.” *Certain Unmanned Aerial Vehicles &*

[REDACTED]

[REDACTED]

Components Thereof, Inv. No. 337-TA-1133, Comm’n Op., 2022 WL 20402976, at *35 (Mar. 1, 2022) (EDIS Doc. ID 800180). [REDACTED]

[REDACTED]

[REDACTED] Even more egregious, important and relevant discovery, limited as it may be, was only produced by Oura on the last day of fact discovery and actually undermines its noninfringement theories. Oura made the sole election of what materials to produce or withhold, and Samsung had no opportunity to investigate or probe for additional pertinent facts before discovery closed.

As an initial matter and as explained in Section IV, Oura failed to “provide fair notice that these products were at issue” at any point during fact discovery. *Portable Battery Jump Starters*, 2024 WL 4145130, at *26. [REDACTED]

[REDACTED]

[REDACTED]

Oura additionally failed to produce (and still has not produced) the most important technical discovery that Samsung needed to actually assess infringement—physical samples of the Ring 5 or [REDACTED] for Samsung to teardown, despite such samples being specifically requested by Samsung’s RFP No. 1. Ex. 73 (January 20, 2026, Complainants’ First Set of Requests for Production (“RFPs”)) at RFP 1. Although Oura claims that it made available Ring 5 and [REDACTED] samples for visual inspection as part of the parallel 1468 Investigation on March 31, 2026, those samples did not show the details of the layers, thicknesses, and material composition of the PCB, which are needed to evaluate infringement for the ’789 Patent. And Samsung had no means to obtain such samples itself since the Ring 5 was not available to the public until June 4, 2026, after the close of fact discovery and far too late for Samsung to conduct a teardown before its opening

[REDACTED]

report was due just days later on June 10. [REDACTED] undisputedly remains months away from public availability. And this teardown evidence is critical to analyzing infringement of the '789 Patent, which relates to a specific arrangement of each product's PCB layers and internal components.

As Oura's Motion admits, Oura waited until May 29, 2026, the last day of fact discovery, to finally produce critical microscopic or SEM cross-sectional images of the Ring 5 and [REDACTED] PCBs. Mot. at 22 (citing Exs. 48-51).⁷ The last-day timing of Oura's production of teardown images failed to give Samsung any opportunity to analyze and test those images before the end of fact discovery, let alone incorporate them in its final infringement contentions. *See Smart Wearable Devices*, Order No. 17, at 11 (finding that "Zepp's delayed disclosures deprived Oura of adequate notice of the asserted redesigns and the relevant features, and of an opportunity to develop infringement contentions within the time allotted under the procedural schedule"); *see also Certain Unmanned*, 2022 WL 20402976, at *35 (finding that the timing of the respondents' production of a sample incorporating the purported redesign over a month after the close of fact discovery "deprived [the complainant] of the opportunity to develop infringement contentions, to obtain expert opinions, and to prepare for trial on that product"); *Certain Portable Battery Jump Starters*, 2024 WL 4145130, at 26 n.17 (finding that the respondents' email sent on the final day of fact discovery indicating that certain samples were available for inspection "fail[ed] to show that [the redesigns] were sufficiently disclosed during fact discovery as redesigns to be adjudicated").

[REDACTED]

While Oura repeatedly cites the large volume of technical materials it produced for Ring 5 and [REDACTED] before the last day of fact discovery, *none* of those materials were sufficient to evaluate infringement for the '789 Patent. Mot. at 3-7. Indeed, as Oura itself describes, most of the cited materials were produced in the 1468 Investigation, *id.* at 3-5, where entirely different features of Oura's own unrelated patents and Samsung's own Galaxy Ring product are at issue. Further, by producing them in the 1468 investigation, Oura avoided giving Samsung any reason to think that Ring 5 and [REDACTED] are at issue in the instant investigation. None of those materials provide the types of detailed images or information needed to evaluate the relevant internal PCB structures of Ring 5 and [REDACTED]

C. Disputes Over The *Oligosaccharides* Factors Prevent Summary Adjudication

At a minimum, to the extent adjudication of the Ring 5 and [REDACTED] is not denied outright, the parties' disputes prevent summary adjudication. When "potential factual issues may exist at least with respect to satisfaction of the *Oligosaccharides* factors," ALJs have denied summary determination of noninfringement against respondents' alternative design products. *Certain Photovoltaic Connectors & Components Thereof*, Inv. No. 337-TA-1365, Order No. 21, at *2 (Mar. 6, 2024) (EDIS Doc. ID 816222); *see also Certain Elec. Devices, Including Mobile Phones, Tablets, Laptops, Components Thereof, & Prods. Containing the Same*, Inv. No. 337-TA-1376, Order No. 33, at 2 (July 15, 2024) (EDIS Doc. ID 828819) (denying the respondents' motion for summary determination of noninfringement, finding that, even though the parties failed to address the threshold issue of whether the respondents' alternative products "may be adjudicated at all" under the *Oligosaccharides* factors, "there is at least a genuine issue of material fact regarding the sufficiency of discovery"); *Certain Playards & Strollers*, Inv. No. 337-TA-1288, Order No. 23, at 2 (Nov. 15, 2022) (EDIS Doc. ID 785623) (finding that "summary determination is not appropriate

[REDACTED]

because genuine issues of material fact remain as to whether the designs are ripe for adjudication,” and “a dispute of material fact exists with respect to . . . whether the Redesigned Products meet the limitations of [the asserted] claims”).

D. If Ring 5 And [REDACTED] Are Adjudicated, Fairness Requires That Samsung Be Afforded The Opportunity To Respond

Should the ALJ determine that the Ring 5 and [REDACTED] should be adjudicated, fundamental fairness requires that Samsung be afforded the opportunity to obtain further necessary discovery and prepare supplemental contentions and expert reports addressing infringement by the Ring 5 and [REDACTED]

Similar requests have been granted to supplement contentions and expert reports in response to new theories raised for the first time in the opposing party’s rebuttal expert reports or new discovery produced after fact discovery.⁸ For example, in *Certain Formatted Magnetic Data Storage Tapes & Cartridges Containing the Same*, the ALJ granted respondents leave for respondents to serve a supplemental expert report to address secondary considerations opinions raised for the first time in complainant’s rebuttal expert report. Inv. No. 337-TA-931, Order No. 16, at *4 (Apr. 29, 2015). In *Certain Network Devices, Related Software & Components Thereof (II)*, the ALJ granted complainant’s alternative remedy of permitting rebuttal testimony through supplemental expert reports, to “noninfringement contentions [that] were not properly or timely disclosed” by respondents and their expert. Inv. No. 337-TA-945, Order No. 43, at *12 (Nov. 20, 2015). And in *Certain Mobile Telephones, Tablet Computers with Cellular Connectivity, & Smart*

⁸ For clarity, unlike the cases cited in this section, which concerned new theories bearing on issues already in the Investigation, Oura seeks to introduce belated noninfringement theories on products that would otherwise not be adjudicated *at all* in this Investigation. Under these facts, Samsung would be severely prejudiced if Oura’s untimely redesigns are adjudicated—supplementation by Samsung, though necessary, would not be sufficient to cure that prejudice.

[REDACTED]

Watches with Cellular Connectivity, Components Thereof, & Products Containing Same, the ALJ permitted complainants to supplement their infringement contentions and expert report to address source code produced by respondent after the close of fact discovery. Inv. No. 337-TA-1299, Order No. 24, at *2 (Nov. 29, 2022).

Likewise here, Oura disclosed its distinct, new noninfringement theories for Ring 5 and [REDACTED] for the first time in Dr. Mortazavi’s rebuttal expert report. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

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[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Given the evidence in the record undermining Oura's own noninfringement theories, to the extent Oura's new products and new noninfringement theories are adjudicated in this investigation, Samsung should be permitted to respond and address the deficiencies and inconsistencies in Oura's noninfringement theories.

V. CONCLUSION

Oura's motion for summary determination should be denied. Oura's contentions failed to disclose the Ring 5 and [REDACTED] as non-infringing redesigns, or to identify any basis for finding that they do not infringe, distinct from the Ring 4. Second, the Ring 5 and [REDACTED] also fail the *Oligosaccharides* factors because Samsung was given neither timely notice nor timely discovery necessary to investigate the Ring 5 and [REDACTED] for its final infringement contentions. Third, if the ALJ determines that adjudication is warranted, Samsung must be allowed to conduct further fact and expert discovery before the merits of infringement are adjudicated.

Dated: July 23, 2026

Respectfully submitted,

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CERTIFICATE OF SERVICE

Investigation No. 337-TA-1478

The undersigned certifies that on July 23, 2026, true and correct copies of the foregoing document were served upon the following parties as indicated below:

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The undersigned certifies that on August 6, 2026, true and correct copies of the foregoing document were served upon the following parties as indicated below:

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EXHIBIT 59

REDACTED IN ITS ENTIRETY

EXHIBIT 60

REDACTED IN ITS ENTIRETY

EXHIBIT 61

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